

TEXAS ADMINISTRATIVE CODE: As in effect on 8/23/2026.

TITLE 26. HEALTH AND HUMAN SERVICES

PART 1. HEALTH AND HUMAN SERVICES COMMISSION

CHAPTER 558. LICENSING STANDARDS FOR HOME AND COMMUNITY SUPPORT SERVICES AGENCIES

SUBCHAPTER C. MINIMUM STANDARDS FOR ALL HOME AND COMMUNITY SUPPORT SERVICES AGENCIES

DIVISION 3. AGENCY ADMINISTRATION

§558.255. Prohibition of Solicitation of Patients.

(a) An agency must adopt and enforce a written policy to ensure compliance of the agency and its employees and contractors with Texas Occupations Code Chapter 102. For the purpose of this section, a patient is considered to be a client.

(b) HHSC may take enforcement action against an agency in accordance with §558.601 of this chapter (relating to Enforcement Actions) and §558.602 of this chapter (relating to Administrative Penalties), if the agency violates Texas Occupations Code §102.001, Soliciting Patients; Offense or §102.006, Failure to Disclose; Offense.

Source Note: The provisions of this §558.255 adopted to be effective February 1, 2002, 26 TexReg 9159; amended to be effective July 1, 2012, 37 TexReg 4613; transferred effective May 1, 2019, as published in the April 12, 2019, issue of the Texas Register, 44 TexReg 1893; amended to be effective April 25, 2021, 46 TexReg 2427.